

Argentina

National Commission for the Defence of Competition

During 2022, the National Commission for the Defence of Competition ('CNDC') continued to focus on digital transformation initiatives to enhance antitrust analysis, working primarily on updating and improving its information technology systems with the collaboration of all departments involved in their use.

This article reviews different computational tools that are used by the CNDC, starting with *Mordelon*, an internal file processing system through which the competition authority handles all presentations submitted by third parties. It will also examine the recent developments of the Electronic Document Management Platform, a widely used platform designed to manage and keep track of all government-related processes, as well as the efforts to implement the Remote Procedures System to other types of processes besides merger control. Finally, we will also look at the addition of new functionalities and case law search engines to the institutional website.

Mordelon was developed in 2020 during the peak of the Covid-19 pandemic. The system is maintained and run by the Unit of the Registry, which also keeps it up to date and constantly incorporates new features, adapting it to new processing information requirements. The entirety of CNDC's staff currently uses *Mordelon* for recording the third parties file processing. The system also enables case handlers to interact with the Unit of Registry and enter notification instructions to the area's personnel.

Mordelon is compatible with the *Electronic Document Management Platform* ('GDE'), a platform through which most third-party submissions are formally filed. It has proven to be an excellent ally for the CNDC staff to manage electronic records transparently and to access real-time reports on the procedures that involve the handling of each case. GDE also minimized the requirement for the CNDC to handle loads of documents that must be preserved and protected, enabling the authority to save resources that were allocated for the preservation of paper archives. Moreover, digitalization rendered all the activities that make up each investigation suitable for remote work, allowing each analyst to have a more agile, flexible, and autonomous work regime, with less need for constant intervention of the Unit of Registry.

Regarding the bridge between third parties and the CNDC, it is a role of crucial importance that is being fulfilled by the *Remote Procedures System* ('TaD'). TaD is,

strictly speaking, a feature of GDE, a system that enables companies and individuals to submit digital presentations to the CNDC using their tax identification number. These presentations are linked to the electronic file in the GDE environment after being reviewed by the Unit of Registry personnel. TaD is quite popular among practitioners because, if enabled, it allows them to remotely monitor and inspect the investigation record's contents as they are uploaded to the electronic file without having to visit the competition authority's physical desk.

In the last few years, TaD has been implemented for merger control-related procedures. Given its success, attorneys and law firms frequently interacting with the CNDC constantly request implementing the TaD feature in the investigations of anti-competitive conduct. Yet this poses challenges.

The TaD system permits not only remote documentation submission but also allows the examination of all the documents on the electronic investigation file by an authorized third party. Anti-competitive investigations thus require an adaptation to prevent confidential information from being revealed to all parties that may be involved in the conduct and have access to the record. This scenario of unintentional and improper access to sensitive information is not a significant problem in merger control cases, which is almost always a collaborative procedure between two associated parties and the competition authority.

To solve this obstacle, CNDC and the National Directorate of State Digitalization of the Secretariat of Public Innovation—a unit of the Office of the Chief of Cabinet of Ministers—teamed up to develop a particular procedure through the TaD platform, which would link confidential documents to a reserved electronic file, accessible only to the CNDC case handlers, leaving non-confidential information in the main electronic file, which could be accessed unrestrictedly by the parties under investigation. CNDC personnel are currently testing this approach in a sandbox environment. If successful, CNDC expects to launch TaD for anti-competitive investigations in the coming months once the training process for the staff of the Unit of Registry and the Unit of Anti-competitive Conduct has been completed.

In addition to issues related to procedures and IT systems, it should be noted that the CNDC is also updating and optimizing its website to create a virtual platform that not only serves as a repository to consult case law but also becomes a tool for effective communication between the competition authority and stakeholders.

The Advocacy Unit is currently redesigning the institutional website in order to enhance its accessibility and provide valuable and straightforward content that is also visually appealing. The incorporation of infographics to accompany the press releases of the CNDC's various actions, the constant updating of the website with the agency's latest news, and the systematic incorporation of new opinions, resolutions, working papers, publications, and other documents of interest stand out among these efforts.

The website has also incorporated 'search engines' that make it easier to obtain specific information; there are databases for administrative decisions and case law, as well as a specific search engine for sanctions for 'gun jumping.' These databases allow practitioners and people interested in filtering jurisprudence by various criteria.

To provide an objective measure of effectiveness, the Advocacy Unit prepares an interaction metrics report to evaluate the performance of the institutional website. This monthly report also includes a follow-up of the interaction indicators of LinkedIn, the only social network that the CNDC currently uses. The tool used to analyze the website performance is Google Data Studio. The main parameters observed are the visits to the website and its specific content, the monthly visits, and the accumulated annual variation. As for LinkedIn, the report tracks the number of followers, views, reactions, and user comments on the news items included and the interaction rates of each content. The metrics report allows the CNDC to have an in-depth view of the reach of all material produced and shared and to adjust the communication and advocacy strategy to be increasingly influential and far-reaching.

To conclude, much progress has been made toward digitalized competition enforcement regarding the work inside the agency and the interaction between the agency and the interested public. However, computational antitrust is a challenging subject, and the CNDC will continue upgrading all IT resources to deal with it.